

File No.: EXP202301672

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: The Spanish Agency for Data Protection has become aware through the receipt of various complaints of certain facts that could violate the legislation on data protection. On February 13, 2023, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD) to investigate VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, VODAFONE) in relation to the following facts:

The aforementioned complaints against VODAFONE ESPAÑA S.A.U. were related to the exercise by its customers of the right of access to the telephone recordings in which the contractual conditions were agreed upon after a telephone contracting process.

In relation to the above, the need to assess the possible implications regarding the protection of personal data advised the opening of an investigation to verify these aspects and, if applicable, the proper observance of the regulations.

Considering the broad scope of these proceedings, given the size of the investigated company and the large number of potential users affected by such processes, it was deemed necessary for this Agency to know in detail the procedure for addressing the right of access of VODAFONE when it must include voice recordings in its response.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation proceedings to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

During these proceedings, the following entity has been investigated:

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VODAFONE ESPAÑA, S.A.U. (hereinafter VODAFONE) with NIF A80907397, located at AVDA. DE AMÉRICA, 115 - 28042 MADRID (MADRID)

RESULT OF THE INVESTIGATION PROCEEDINGS

Regarding Vodafone's telephone support channel

Vodafone states that the telephone support channel is used to handle interactions with both customers and potential customers. It adds that the agents belonging to this channel use as support (...).

In relation to the interactions through the telephone channel with customers, VODAFONE refers that they respond to matters of various kinds, among which it exemplifies the following: handling of faults; customer cancellations; cancellations or activations; invoices and credits; inquiries about contracted services; questions about purchased products; offers and promotions; issues regarding payments and debts; or possible cases of fraud.

(...)

Regarding the contracting procedure through the telephone channel

In relation to the contracting procedure through the telephone channel, VODAFONE has previously described the process in the following terms:

(...)

Additionally, the following documents were incorporated into the proceedings:

- General telephone argumentation of VODAFONE.
- VODAFONE's security policy in its interaction with customers.
- Diagram of Vodafone's telephone sales process.

Regarding the exercise of the right of access

VODAFONE describes in the following terms the procedure it follows for addressing the exercise of the right of access:

(...)

Vodafone states that it has guides and directives for the staff managing the exercises of the right of access. (...)

Likewise, VODAFONE cites the following specificities regarding requests for access to recordings by the interested parties:

(...) In this regard, it provides a screenshot that includes the following content:

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3/6

(...)

Vodafone's telephone support numbers

Vodafone has provided numerical information regarding its telephone support processes. It details the following (corresponding to the year 2022):

(...).

Additionally, Vodafone has provided the following data regarding the exercise of the right of access that involves voice recordings (year 2022):

(...)

CONCLUSIONS OF THE PREVIOUS INVESTIGATION PROCEEDINGS

According to the information provided, (...).

The present proceedings have focused on the process of addressing the exercise of the right of access when it involves voice recordings. On this particular matter, Vodafone has provided details of the internal process by which it receives and manages the same. (...)

LEGAL GROUNDS

I

Competence

In accordance with [Insert the corresponding text for [Legal Ground I EI].] and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigation proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 12 GDPR

Transparency of information, communication, and modalities for exercising the rights of the data subject

Article 12 of the GDPR establishes the following:

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“1. The data controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 related to the processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, in particular any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided orally, provided that the identity of the data subject is demonstrated by other means.

2. The data controller shall facilitate the exercise of the data subject's rights under Articles 15 to 22. In the cases referred to in Article 11, paragraph 2, the controller shall not refuse to act on the request of the data subject in order to exercise their rights under Articles 15 to 22, unless it can demonstrate that it is not in a position to identify the data subject.

3. The data controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, without undue delay and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided otherwise.

4. If the data controller does not act on the request of the data subject, it shall inform them without undue delay, and at the latest within one month of receiving the request, of the reasons for not acting and of the possibility of lodging a complaint with a supervisory authority and seeking judicial remedies.

5. The information provided under Articles 13 and 14 as well as any communication and any action taken under Articles 15 to 22 and 34 shall be provided free of charge. When requests are manifestly unfounded or excessive, particularly due to their repetitive nature, the data controller may:

- a) charge a reasonable fee based on the administrative costs incurred in providing the information or communication or taking the requested action, or
- b) refuse to act on the request.

The data controller shall bear the burden of demonstrating the manifestly unfounded or excessive nature of the request.”

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Article 15 of the GDPR

Right of access of the data subject

Article 15 of the GDPR establishes the following:

“1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning him or her are being processed and, where that is the case, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;

- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.
2. Where personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.
3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee for any further copies requested by the data subject based on administrative costs. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.
4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others.”

IV

Conclusion

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6/6

Based on the information provided in the previous sections, and considering the information provided by VODAFONE, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Data Protection Agency.

Throughout the preliminary investigation proceedings carried out by this Agency, VODAFONE has been requested to provide information and documentation regarding its telephone assistance systems, the operations and circumstances under which conversations with customers are recorded; the telephone contracting channel, the scripts and security policies used; the procedure and operations for handling the exercise of access rights.

As a result of this investigation, this Agency has not found indications of a systemic or significant breach of data protection regulations in relation to the exercise of access rights by VODAFONE customers concerning the recordings of their telephone conversations with the operator.

Thus, as it has not been possible to attribute an infringement regarding personal data protection regulations, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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